

Tentative Rulings

June 4, 2026

Department S-17

Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

14. *Avila v. California Premier Roofscapes, Inc., et al*, Case No. CIVSB2425309
Defendants' Motion to Compel Plaintiff's Deposition
6/4/26, 9:00 a.m., Dept. S-17

Tentative Rulings

As to the Request for Judicial Notice: Defendants seek judicial notice of Google Map images of certain locations in Ontario, California. (Exhs. 6-7.) The Court would **DENY**. (See *Bridges v. Mt. San Jacinto Community College Dist.* (2017) 14 Cal.App.5th 104, 117 [printout from website "not the type of agency action we may judicially notice"]; also *Taylor v. Dept. of Industrial Relations, Div. of Labor Standards Enforcement* (2016) 4 Cal.App.5th 801, 806, FN 3 [court denied request for judicial notice of website where information on website irrelevant to resolution of dispute].)

As to the Motion: The Court would **GRANT** as to categories 5-7 but deny as to the remainder. Further, the Court would limit the deposition to no more than an hour and a half in duration, and, given the attorney acrimony, it would suggest the parties consider holding the deposition at the Court location (within a deliberation or conference room). Plaintiff's and Defendants' counsel will meet and confer on a mutually agreeable date and take the deposition no later than within the next thirty (30) days.

Analysis

Here, Defendants move to compel Plaintiffs' deposition because Plaintiff has failed to respond to examination at the first and second deposition.

Plaintiff claims he sustained personal injuries due to a work-related incident that is currently covered under workers' compensation. At the deposition, Plaintiff's counsel refused to permit Plaintiff to respond to questions regarding his ability to find gainful employment, pre-existing medical conditions, and the factual details surrounding the accident. Plaintiff's counsel made more than 200 objections during the deposition.

Defendant seeks to inquire further on the following: (1) questions regarding Plaintiff's employment from 1991 to 2006; (2) questions regarding Plaintiff's ability to understand, speak, read and write English; (3) questions regarding Plaintiff has been convicted of a crime that would prevent him from obtaining employment; (4) questions whether Plaintiff's immigration status would prevent him from obtaining employment; (5) questions regarding Plaintiff's consideration and participation in vocational rehabilitation programs; (6) questions regarding Plaintiff's understanding of what caused his injuries; (7) questions regarding the address of the exact location of where the accident occurred based on google maps; and (8) questions regarding where on Plaintiff's body the roofing paper struck him. Plaintiff claims this has already more time than allotted pursuant to Code Civ. Proc., §2025.290, but, notably, the section also allows the Court to provide additional time.

The Court is disinclined to allow further inquiry into the following: As to categories one (employment) and two (English proficiency), the Court finds his prior responses sufficient. (See, e.g., Vol.2, Depo., 137:10-24 [as to one].) As to categories three (crim. history), the Court finds that response that he has no felonies is sufficient. (Vol.1, Depo., 59:21-62:10.) The Court would find insufficient basis for further inquiry as to category four (immigration status). (Evid. Code, § 351.2 [“ . . . nor shall discovery into a person’s immigration status be permitted.”].) As to category eight (roofing paper), the Court would find the prior answers sufficient. (E.g., Depo., 69:8-25.)

However, the Court would allow additional inquiry into the following: As to category five (technical rehab), there were improper objections and the Court sees no basis for the instruction not to answer. Similarly, as to category six (understanding of injuries), the instruction not to answer is not well founded. The inquiry is as to discoverable information, and the assessment of attorney-client and work-product privileges appear improper for this area of inquiry. Finally, again similarly, as to category seven (exact location of accident), the inquiry seek discoverable information. The Court would allow further inquiry as to these topics.

14. *Avila v. California Premier Roofscapes, Inc., et al*, Case No. CIVSB2425309
Defendants’ Motion to Compel Response to Requests for Production, Set One
Defendants’ Motion to Compel Response to Special Interrogatories, Set Two
6/4/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would find the motions **MOOT**.

Analysis

Defendants move to compel responses from Plaintiff to Requests for Production, Set One (RFP1) and Special Interrogatories, Set 2 (SROG2). At issue are RFP1, numbers 1-5 and SROG2, numbers 27-53.

Relevant here, Defendants served the discovery on November 20, 2025. The discovery response deadline was continued by agreement to January 9, 2026. On January 5, 2026, when Plaintiff asked for an additional extension, Defendants refused. Thus, to preserve objections, Plaintiff provided objection-only responses on January 9, 2026. These motions to compel were filed on February 6, 2026, but on or about March 31, 2026, Plaintiff served verified supplemental responses. (Rafael Decl., ¶12 & Exh. E.) Thus substantive, supplemental responses have been provided and the motions are moot.

As to sanctions, the Court would decline to impose them. It appears that there is substantial justification in that Plaintiff sought extension of the deadline before providing objection-only

responses and was intent on providing substantive responses. Moreover, the Court notes that no separate statements were provided. (Cal. Rules of Court, rule 3.1345(a)(2) & (3) [requiring separate statement when compelling further responses].) Here, it appears that movants moved as if there had been no prior responses. While the initial responses were couched as objection-only, they still existed.

TENTATIVE